

In memoriam

Salma's journey into activism

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SALMA Sobhan never wanted to be an icon. In fact, she avoided stage lights, but ironically, she has become a public figure and now, a year after she left us, she is remembered not only by family and friends, but nationally and internationally by many others. An award for journalists has been established in her name by Professor Amartya Sen's Protichi Foundation, a volume containing some of her writings has been published by ASK, and at several commemorative meetings, she has been held up as an example of a selfless human rights worker.

The reasons why have been brought out in the commemorative meetings. In her personal life, she was clear about rights and wrongs, and while she had little time for hypocrisy, she was tolerant of the views of others and didn't make value judgements. She was able to discuss issues honestly, and talk about events or people she knew with humour and without rancour. These were qualities that endeared her personally to all those who came into contact with her. She had a large number of personal friends not only in Bangladesh, but in the UK where she studied, and indeed in many other countries. Even though her parents were both public figures, her father having served as Pakistan's Foreign Secretary and her mother having been a member of Pakistan's first Parliament, Salma avoided the public glare.

Her active public engagement emerged later, and more by chance than a determined decision. In commemorating her life, we remember these qualities, but more than that, we chart her journey as a humanist who became an activist because she translated her personal values into a public struggle for justice.

She ~~became~~ became the first woman barrister in Pakistan in 1959, but unlike other lawyers who pursued their profession single-mindedly, she had a wide range of interests. She was well versed in literature, particularly in Urdu and English, and would quote verses extensively from memory. She was also addicted to thrillers and children's fiction.

Her traditional upbringing didn't make her illiberal. Even though she was deeply religious and grew up in a relatively conservative, social environment she didn't hesitate to speak out against religious injustice or sham religious practices. When she designed the BRAC legal literacy programme, she was able to reach out to ordinary village women, to make them understand what their rights were in inheritance or marriage. With her ability to communicate, she was able to demystify the laws so that women could learn to defy unfair decisions that are often forced upon them in the name of religion. With her knowledge of

religious texts she was able to challenge religious bigots, who thrived on people's ignorance.

Dhaka in the 60s

Salma came to Dhaka in 1962 after she married Rehman Sobhan. She decided not to practice and instead she started teaching at the university. She had a great way of reaching out to her students, and often valued their understanding of reality over her theoretical knowledge. Although she was flummoxed on reading a student's answer to the question "Name three means by which property is acquired" that "Property is acquired through forgery, theft, and other means" she decided that the hapless student deserved at least some points!

The political situation in the latter part of the sixties became quite tense. Rehman Sobhan became involved with the political opposition. He had written the definitive article on "two economies" and although Salma shied away from political involvement, she did engage with the current intellectual debates. In the sixties, she was part of a group of university professors and other professionals who brought out pamphlets to explain the reasons for disparity between East and West Pakistan, on absence of democracy, and so on. These pamphlets published under the name of NACEP were popular amongst university students. Later she was part of a small group that published a political weekly *Forum* from 1967 until it was closed down in March 1971.

1971 and after

She could not escape the impact of political events and when March 25 happened, she was left to cope alone. The Pakistan military came to her house asking for Rehman, who fortunately had left the house earlier and sought shelter elsewhere.

Salma managed to fly with her sons to Karachi, from where her sister Princess Sarvath of Jordan arranged her onward flight to England. She lived in Oxford, teaching and caring for her sons Taimur, Babar, and Zafar, while Rehman was busy lobbying for Bangladesh in different capitals.

Homecoming in 1972 was more than traumatic for everyone. Salma returned and picked up the strands of her life in the university, with friends who had survived the genocide. She shared the exhilaration, but was sensitive to dangers her friends had lived through and the sadness in the entire country. She

was concerned about the symptoms of populism, of charisma lending itself to a personality cult.

She had said, very presciently, "What will come after the euphoria? Authoritarianism?" She often expressed her disappointment at undemocratic tendencies, which prevailed even after the massive resistance to the military rule and autocracy. She did what was characteristic of her, and what few others could bring themselves to, which was to refuse to sign the BAKSAL membership, even though she had been urged to do so by her university colleagues, and had herself supported the Awami League.

With the assassinations of August 15, she and her family became nomads again and lived in Oxford for five or six years, looking after the children and leading a peaceful life. When she returned in 1980, she gave up academics and joined Bangladesh Institute of Law and International Affairs. She edited the Bangladesh Supreme Court Reports and co-authored a volume on women industrial workers. At around this time she published the first overview volume of women's legal status and rights in Bangladesh. But she was not satisfied with authoring these pieces of non-fiction, and her one ambition was to ~~author~~ write her "deathless novel." Indeed, she has left several unfinished manuscripts which now need to be published.

In the nineties

During the movement against Ershad's dictatorship, Salma was particularly concerned that the end to military rule might lead to elections and a civil government but not to the end of autocratic tendencies. While we marched on the streets shouting slogans against Ershad's military dictatorship in the eighties, we were conscious that elections would not bring the end of the day, since the powerful would control the state, communities would remain hierarchical, and the family would still be a major site of injustice. She started to think about more practical ways to support people's struggles and became the main mover amongst nine of us who discussed how best to support people's struggles for their rights through legal aid -- a fairly new idea for Bangladesh.

Ain o Salish Kendra (ASK)

That was the beginning of ASK. Since she had resigned from BILJA, and was in any case most qualified to do so, Salma was requested to start the work. Little did she realise

became a member of

contemporary

writing

that it would be so absorbing. She was able to attract a nucleus of young lawyers and others who became human rights activists. Legal aid was not restricted to purely technical legal help. On the contrary, as the result of its deep interaction with clients -- mainly women, workers and even working children -- the centre developed a more holistic support for the disenfranchised, to support them in their struggle for rights. Many of the support systems were very innovative and have become role models.

Today ASK is a far cry from when it first began in Nurjehan Murshed's garage on Satmasjid Road, waiting for needy clients, who had never heard of such a thing as free legal aid. The office then moved to two rooms in Inner Circular Road where it was set up with old, borrowed furniture. Even though the staff turned to her for advice and guidance, and she supported all the innovative ideas, she kept herself in the background.

Setting up and running an organisation and getting disparate people to work together is no joke in Bangladesh. ASK has now acquired a reputation as a leading human rights organisation. It wasn't easy going, and Salma may not have known what she was getting into when she started, but her inimitable sensitivity to other people's problems helped her provide leadership.

She decided quite wisely, that ASK would have to be non-traditional, lawyers would have to reach out so people could understand their rights before they would challenge their subordination. Slowly, as ASK supported individuals in their personal struggles -- the many women with stories of marital disputes and violence, workers who weren't paid even after working 14 hours, children working in middle class homes unable to experience childhood -- she came to understand that behind the endless tales of domination, control, and vio-

lence lay a more systemic abuse of power.

The problems needed more than band-aid measures. ASK began to broaden its struggle for rights. One morning in 1989, Susan Davis (then with the Ford Foundation) called to say she had seen bulldozers literally tearing huts apart in the Taltola bosti. Salma immediately called Tahmina Rahman and other lawyers, and we rushed to the site. Barrister M. Amirul Islam argued the case, and obtained a stay order from the courts. As a result, the people still live on this site, without permanent housing, but surviving and with some kind of shelter. This was the beginning of ASK's engagement with the right to housing.

Subsequently, ASK has continued to raise eviction as a human rights issue and in some cases the court has recognised the primary responsibility of the state. But governments are harder to impress, particularly as they become beholden to business interests. And whether military or elected governments, property development and profits rather than the right to housing has become the main mover of urban development policies. With so many other incidents catalysing ASK into seeking more in-depth solutions, Salma began to act not merely as a lawyer offering technical help, but as a humanitarian person and real human rights lawyer, providing solidarity for and supporting struggles all the way through.

In 1993 and 1994 when there was a sudden epidemic of *fatwas* issued against women, and religious extremists were holding demonstrations against writers, journalists, and NGOs, and calling for them to be silenced, ASK took a strong stand. Although ASK was criticised (by other women's rights activists as well) for defending Taslima Nasreen, Salma remained strong in a commitment to her freedom of speech, and that of others, even though she may not have agreed with what was said. This involvement led to the making



Barrister Salma Sobhan, upon graduation from Cambridge University, 1958.

of the film *Eclipse* by Shaheen Akhtar and Shameem Akhter. Salma received an award in Los Angeles and acknowledged it graciously on ASK's behalf.

By the turn of the century, Salma felt she had done her bit. She decided to retire officially and allow a transition in the organisation. It is a tribute to her leadership that ASK has continued to work independently and courageously even without her. On December 29 last year, Salma made a special effort to come to ASK for some legal negotiations. She was able to represent both sides fairly with a win-win option because of her sense of fair play. She was at her professional best that afternoon, working out with such clarity the complex details of who would benefit from what, and

what needed to be done. The next morning we heard that she had died of a heart attack.

Salma used to describe ASK as a jazz combo, where players improvised together, unlike hierarchical organisations, which were more efficient, but where the orchestra would have to respond to the conductor. An apt analogy. I think the best tribute we can pay her is to say that she succeeded in inspiring a collective spirit amongst all those with whom she worked. This included not only ASK, but the many other organisations inside and outside Bangladesh that she worked with intimately.

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